

**MUNICIPAL BUILDING
2101 O'Neil Avenue
Cheyenne, WY 82001
<http://www.cheyennecity.org>**

**CITY COUNCIL MEETING
COUNCIL CHAMBERS
6:00 P.M.**

AGENDA

APRIL 9, 2012

1. CALL MEETING TO ORDER.
2. CALL ROLL.
3. PLEDGE OF ALLEGIANCE.
4. CONSENT AGENDA.
(All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.)

ACTION: _____

- 5.[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON March 26, 2012.

ACTION: _____ Approve _____

6. VOUCHERS.

ACTION: _____

7. PUBLIC HEARING.

- a) Public Hearing to receive input and comments for Fiscal Year 2012-2013 Annual Action Plan, City of Cheyenne Community Development Block Grant (CDBG) entitlement.

ACTION: _____

- b) Public Hearing for a Bar and Grill liquor license application filed with the City Clerk's Office for Blazin Wings, Inc. d/b/a Buffalo Wild Wings Grill & Bar, 1740 Prairie Avenue, Cheyenne, Wyoming.

ACTION: _____

8. ORDINANCE - 3RD READING - Amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from MUB Mixed Use with Business Emphasis and MR-2 Medium Density Residential – Developing Districts to CB Community Business District for Lots 1-10, Block One, College Business Park, 3rd Filing, Cheyenne, Wyoming (located east of and adjacent to N. College Drive, between Laramie and Charles Streets). (PUBLIC SERVICES COMMITTEE)

ACTION: _____

9. ORDINANCE - 3RD READING - Amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to HR-2 High Density Residential - Developing District for Lot 4, Block One, Gateway South, 3rd Filing, Cheyenne, Wyoming (located east of and adjacent to Walterscheid Boulevard, south of W. Fox Farm Road). (PUBLIC SERVICES COMMITTEE)

ACTION: _____

10. RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for College Business Park, 3rd Filing, a replat of a portion of Tract 101 and all of Tracts 102, 103 and 104, Sunnyside Addition, Fourth Filing, Cheyenne, Wyoming (located east of and adjacent to N. College Drive, between Laramie and Charles Streets). (PUBLIC SERVICES COMMITTEE)

ACTION: _____

- 11.[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Gateway South, 3rd Filing, a replat of Lots 1, 2, 4 and 5, Block One, Gateway South, 2nd Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. Fox Farm Road and Walterscheid Boulevard). (PUBLIC SERVICES COMMITTEE)

ACTION: Adopt _____

- 12.[CA] RESOLUTION - Approving Sanitary Sewer Service, by Outside User Agreement, with Michael Moore, 3133 Lindblom Court, Cheyenne, Wyoming. (FINANCE COMMITTEE)

ACTION: Adopt _____

- 13.[CA] RESOLUTION - Recognizing and Supporting the use of Fiscal Year 2011-2012 Ward 1 Contingency funds and 2011-2014 Optional One Percent Sales Tax funds for the construction of a new Tennis Court in Martin Luther King, Jr., Park. (FINANCE COMMITTEE)

ACTION: Adopt _____

- 14.[CA] RESOLUTION - Approving a proposition to impose the 1% Specific Purpose Sales and Use Tax in Laramie County, State of Wyoming, for the exclusive purpose of funding specific purposes for specific amounts; the propositions to be voted on at the Primary Election to be held on Tuesday, August 21, 2012. (FINANCE COMMITTEE)

ACTION: Adopt

- 15.[CA] RESOLUTION - Approving the City of Cheyenne's 2012- 2013 Annual Action Plan prepared by the Cheyenne Housing and Community Development Office. (SPONSOR - GEORGIA BROYLES)

ACTION: Refer to Finance Committee

16. RESOLUTION - Designating the Mayor and Councilman Jim Brown to meet and confer with the International Association of Fire Fighters, Local Union No. 279, to develop a proposed 2012 - 2013 Collective Labor Agreement for the Cheyenne Fire and Rescue Department. (SPONSORS - JIM BROWN, PATRICK COLLINS)

ACTION: _____

- 17.[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for North Cheyenne Community Park, Second Filing, a replat of North Cheyenne Community Park, Cheyenne, Wyoming (located north of and adjacent to Storey Boulevard, east of and adjacent to Chief Washakie Avenue). (SPONSOR - AMBER ASH)

ACTION: Refer to Public Services Committee

- 18.[CA] RESOLUTION - Authorizing an amended Final Plat to accompany Resolution # 5295 – as adopted by the Governing Body on July 11, 2011 for Niobrara Energy Park, a replat of a portion of Tracts 6, 17, & 18, Clear View Tracts, a portion of C.B.C. Subdivison, and a portion of the N1/2 of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located west of South College Drive (behind Lighthouse Baptist Church), north of Laramie County Community College). (SPONSOR - AMBER ASH)

ACTION: Refer to Public Services Committee

- 19.[CA] RESOLUTION - Providing for the review and approval of the South Cheyenne Water and Sewer District's application for three Mineral Royalty Capital Construction Account Grant applications before the Wyoming State Loan and Investment Board for the Orchard Valley Sanitary Sewer Main Replacement Project. (SPONSOR - PATRICK COLLINS)

ACTION: Refer to Finance Committee

- 20.[CA] RESOLUTION - Re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. (SPONSOR - JIM BROWN)

ACTION: Refer to Finance Committee

21. PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

- a)[CA] Preliminary Plat for Saddle Ridge Subdivision, 4th Filing, a replat of Lots 1-19, 21, and 23, Block 14, and Lots 1-27, Block 15, located in the S½ NW¼ and N½ SW¼, Section 25, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of Whitney Road, between Laramie Street and Countryside Avenue.)

ACTION: Refer to Public Services Committee

- b)[CA] Preliminary Plat for Lincoln Addition, Second Filing, a replat of a portion of Tract B, Lincoln Addition, and abandoned Wyoming Department of Transportation right-of-way being situated in a portion of Section 1, T.13N., R.67W., 6th P.M., Cheyenne, Wyoming (located north of and adjacent to West Lincolnway, between Westland Road and Stinson Avenue).

ACTION: Refer to Public Services Committee

- c)[CA] Preliminary Plat for Campstool Addition, Fourth Filing, situate in portions of the NE¼ of Section 31, and the NW¼ of Section 32, T.14N., R.65W., 6th P.M. and a replat of a portion of Campstool Addition, First Filing, Cheyenne, Wyoming (located north of and adjacent to I-80 Service Road, east of Industry Road and south of Venture Drive).

ACTION: Refer to Public Services Committee

22. LEASES/CONTRACTS/LEGAL:

- a)[CA] Professional Services Agreement between the City of Cheyenne and All Traffic Data Services, Inc. for data collection for the Updated Turning Movement Count Project (Metropolitan Planning Organization (MPO) Federal funding). (FINANCE COMMITTEE)

ACTION: Approve (amount not to exceed \$42,350.00)

- b)[CA] User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Warriors Football Club, LLC, for the purpose of holding arena football games and related practices at the City of Cheyenne-owned Ice and Events Center. (FINANCE COMMITTEE)

ACTION: Approve

- c)[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, to provide a Cheyenne Transit bus to use in service of Stride's Clients. (FINANCE COMMITTEE)

ACTION: Approve

d)[CA] Professional Services Agreement between the City of Cheyenne and Tatooine Electronic Systems, Inc., for recycling of electronic waste received at the Felix Pino Transfer Station Waste Facility and Happy Jack Landfill. (FINANCE COMMITTEE)

ACTION: Approve (amount not to exceed \$160,000.00/2 year agreement)

e)[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County Sheriff's Department and Laramie County, Wyoming, for Municipal Court security services.

ACTION: Refer to Finance Committee

f)[CA] Agreement between the City of Cheyenne and Josh Cossitt to provide tennis services and instruction for the 2012 season.

ACTION: Refer to Finance Committee

g)[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No.1 for School Resource Officers for summer school 2012.

ACTION: Refer to Finance Committee

h)[CA] Agreement between the City of Cheyenne and Boys and Girls Club of Cheyenne, Inc., for lease of City-owned real property located at 1700 Snyder Avenue, Cheyenne, Wyoming.

ACTION: Refer to Finance Committee

i)[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Girls Softball Association for concession services at Converse Softball Complex and Brimmer Softball Complex for 2012, 2013 and 2014.

ACTION: Refer to Finance Committee

23. CHANGE ORDERS/CONTRACT MODIFICATIONS:

a)[CA] Amendment Number Six to Cooperative Agreement, Contract No. 4968, between the City of Cheyenne and Wyoming Department of Transportation for reconstruction of Pershing Boulevard from I-25 to Pioneer Avenue (2007-2010 1% Sales Tax). (FINANCE COMMITTEE)

ACTION: Approve

24. CONSIDERATION OF BIDS:

- a)[CA] Consideration of Bid #R-31-12 for furnishing 68 new desktop computers for the City of Cheyenne, Information Technology Division, pursuant to the City's replacement program (2011-2014 1% Sales Tax). (FINANCE COMMITTEE)

ACTION: Accept bid (Zone, Inc. Auburn, WA; amount not to exceed \$39,728.32)

- b)[CA] Consideration of Bid #M-14-12 for a Contract between the City of Cheyenne, Street and Alley and 1% Construction Divisions, and Miller & Sons Construction, Inc., Cheyenne, Wyoming, for the annual concrete overlay project (2007-2010, 2011-2014 1% Sales Tax). (FINANCE COMMITTEE)

ACTION: Accept bid (amount not to exceed \$551,216.50)

- c)[CA] Consideration of Bid #R-26-12 for furnishing one new 2012 stake bed truck from Spradley Barr Motors, Inc., Cheyenne, Wyoming, for the Sanitation Division (Solid Waste fund). (FINANCE COMMITTEE)

ACTION: Accept bid (amount not to exceed \$36,972.00)

- d)[CA] Consideration of Bid #R-27-12 for furnishing one new semi-truck from Peterbilt of Wyoming, Cheyenne, Wyoming, for the Sanitation Division (Solid Waste fund). (FINANCE COMMITTEE)

ACTION: Accept bid (amount not to exceed \$128,861.00)

- e)[CA] Consideration of Bid #R-28-12 for furnishing one new 2012 front end wheel loader from Tri-State Truck & Equipment, of Casper, Wyoming, for Street and Alley Division (2007-2010 1% Sales Tax).

ACTION: Refer to Finance Committee

25. OTHER BUSINESS:

26. ADJOURN.